April 10, 2025

Benjamin May
Designated Agency Ethics Official
Office of the General Counsel
U.S. Department of Education
400 Maryland Avenue SW, Room 7W103
Washington, DC 20202

Dear Mr. May:

The purpose of this letter is to describe the steps that I will take to avoid any actual or apparent conflict of interest in the event that I am confirmed for the position of Under Secretary of Education in the U.S. Department of Education. It is my responsibility to understand and comply with commitments outlined in this agreement.

SECTION 1 – GENERAL COMMITMENTS

As required by the criminal conflicts of interest law at 18 U.S.C. § 208(a), I will not participate personally and substantially in any particular matter in which I know that I have a financial interest directly and predictably affected by the matter, or in which I know that a person whose interests are imputed to me has a financial interest directly and predictably affected by the particular matter, unless I first obtain a written waiver, pursuant to 18 U.S.C. § 208(b)(1), or qualify for a regulatory exemption, pursuant to 18 U.S.C. § 208(b)(2). I understand that the interests of the following persons are imputed to me:

- Any spouse or minor child of mine;
- Any general partner of a partnership in which I am a limited or general partner;
- Any organization in which I serve as an officer, director, trustee, general partner, or employee, even if uncompensated; and
- Any person or organization with which I am negotiating or have an arrangement concerning prospective employment.

In the event that an actual or potential conflict of interest arises during my appointment, I will consult with an agency ethics official and take the measures necessary to resolve the conflict, such as recusal from the particular matter or divestiture of an asset.

If I have a managed account or otherwise use the services of an investment professional during my appointment, I will ensure that the account manager or investment professional obtains my prior approval on a case-by-case basis for the purchase of any assets other than cash, cash equivalents, investment funds that qualify for the regulatory exemption for diversified mutual funds and unit investment trusts at 5 C.F.R. § 2640.201(a), or obligations of the United States.

I will receive a live ethics briefing from a member of the ethics office after my confirmation but not later than 15 days after my appointment pursuant to the ethics program regulation at 5 C.F.R. § 2638.305. Within 90 days of my confirmation, I will submit my Certification of Ethics Agreement Compliance which documents my compliance with this ethics agreement.

I will not modify this ethics agreement without your approval and the approval of the U.S. Office of Government Ethics (OGE) pursuant to the ethics agreement requirements contained in the financial disclosure regulation at 5 C.F.R. § 2634.803(a)(4).

SECTION 2 – DULLES ADVISORY GROUP, LLC

I am the sole managing director of Dulles Advisory Group, LLC, which was used only as a pass-through entity for funds received for consulting income. The company has been dormant since November 2017, and I have not provided services to clients since. During my appointment to the position of Under Secretary of Education, the company will remain dormant and will not advertise. I will not perform any services for the company, except that I will comply with any court orders or subpoenas and any requirements involving legal filings, taxes, and fees that are necessary to maintain the company while it is in an inactive status. As Under Secretary of Education, I will not participate personally and substantially in any particular matter that to my knowledge has a direct and predictable effect on the financial interests of Dulles Advisory Group, LLC.

SECTION 3 – COMMONWEALTH OF VIRGINIA

I resigned from my position with the Commonwealth of Virginia in January 2025. For a period of one year after my resignation, I will have a "covered relationship" under the impartiality regulation at 5 C.F.R. § 2635.502 with the following entities:

- Virginia Office of the Secretary of Education
- Virginia Department of Education
- Virginia Community College System
- State Council of Higher Education for Virginia
- Virginia Community College System and affiliated community colleges
- Richard Bland College of William & Mary
- Virginia's four-year public institutions of higher education
- Virginia's public higher education institutions

For a period of one year after my resignation from the Commonwealth of Virginia, I will not participate personally and substantially in any particular matter involving specific parties in which I know any of these entities I have a "covered relationship" with is a party or represents a party, unless I am first authorized to participate, pursuant to 5 C.F.R. § 2635.502(d).

SECTION 4 – AMERICAN SHALE DEVELOPMENT, INC., AND REPUBLIC ENERGY VENTURES, LLC

I entered into an oil and gas rights lease, with American Shale Development, Inc., and Republican Energy Ventures, LLC as lessees. I will not participate personally and substantially in any particular matter that to my knowledge has a direct and predictable effect on the ability or willingness of either entity to make payments to me, unless I first obtain a written waiver, pursuant to 18 U.S.C. § 208(b)(1). Pursuant to the impartiality regulation at 5 C.F.R. § 2635.502, I also will not participate personally and substantially in any particular matter involving specific parties in which I know either entity is a party or represents a party, unless I am first authorized to participate, pursuant to 5 C.F.R. § 2635.502(d).

SECTION 5 – PUBLIC POSTING

I have been advised that this ethics agreement and the Certification of Ethics Agreement Compliance will be posted publicly, consistent with the public information law at 5 U.S.C. § 552, on the website of OGE with ethics agreements of other presidential nominees who file public financial disclosure reports.

Sincerely,

NICHOLAS KENT

Digitally signed by NICHOLAS KENT
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